

Document
Exhibit 10.13
FIFTH

AMENDMENT

TO
THE

BANK

OF

AMERICA

DEFERRED

COMPENSATION

PLAN
(As

Amended

and

Restated

January

1,
2015)
Instrument

of

Amendment
THIS

INSTRUMENT

is

executed

by

BANK

OF

AMERICA

CORPORATION,

a

Delaware
corporation with its principal office and place of business in Charlotte, North Carolina (the
“Company”).
Statement

of
Purpose
The

Company

sponsors

The

Bank

of

America

Deferred

Compensation

Plan

(f/k/a

the

Bank of

America

401(k)

Restoration

Plan)

(the

“Plan)

for

its

eligible

employees

and

eligible

employees of

its

affiliated

companies

that

participate

in

the

Plan.

The

provisions

of

the

Plan

are

currently

set forth in an Instrument of the

Company dated December

5, 2014, which amended and restated the Plan effective as of January 1, 2015, and subsequently amended by the First

Amendment, dated December 17, 2015, by the Second Amendment, dated December 15, 2016, by the Third Amendment,

dated

December

13,
2019,
and
by
the
Fourth
Amendment,
dated
December

11,

2020. In Section 4.1 of the Plan, the Company reserved the right to amend the Plan in whole or in part. By this Instrument, the Company is amending the Plan by modifying the beneficiary language

in
the
event
of a
divorce
or
legal
separation
and
clarify claims
adjudication
jurisdiction.
NOW,
THEREFORE,
the

Company

hereby

amends

the

Plan

as

follows,

to

be

effective

as of the dates set forth herein⁵⁸;

1.

Effective

January

1,

2025,

Section

1.12

of

the

Plan

is

hereby

amended

in

its

entirety as follows⁵⁸;

8220;

1.12

Beneficiary

The

affirmatively

designated

“Beneficiary”

of

a

Participant

under

the

Bank

401(k) Plan unless the Participant affirmatively designates a different Beneficiary for purposes

of

the

Restoration

Plan

in

accordance

with

such

procedures

as

the

Global Human

Resources

Group

may

establish

from

time

to

time.

If

there

is

no

affirmative Beneficiary designation in effect under either the Bank 401(k) Plan or the Restoration

Plan

at

the

time

of

a

Participant's

death,

or

if

the

designated

Beneficiary fails to survive the Participant, the Beneficiary shall be the Participant's surviving spouse, or if there is no surviving spouse, the Participant's estate.

Notwithstanding any contrary provision of this Section and except as may be required by a Qualified Domestic Relations Order, in accordance with procedures established by the Committee, a Participant's Spouse shall automatically cease to be the Participant's Beneficiary and any designation under this Section of a Participant's

Spouse

as

Beneficiary

will

be

revoked

automatically

in

the

event

of

1

the Participant's legal separation or divorce (or the Spouse ceases to be the Participant's

Spouse

under

applicable

law

for

any

reason

other

than

the

Participant's

death), if the Participant's then designated Beneficiary is the Participant's former Spouse.

For the avoidance of doubt, if such designation is automatically revoked pursuant to the foregoing sentence, and a Participant previously designated a non-spouse Beneficiary, the Participant's prior Beneficiary designation shall automatically

become

effective

again

upon

divorce/legal

separation

unless

or

until the Participant affirmatively revokes such designation and/or selects another designated Beneficiary.

Further, any prior beneficiary designation shall be automatically revoked upon the Participant’s marriage (and shall stay revoked for so

long

as

the

marriage

continues),

if

the

Participant’s

then-designated

Beneficiary is not the Participant’s then-current Spouse.”

2.

Effective

January

1,

2025,

Section

5.5

of

the

Plan

is

hereby

amended

in

its

entirety as follows:

“The Plan shall be construed, administered, regulated and governed in all respects under and by the laws of the United States to the extent applicable and, to the extent such laws are

not

applicable,

by

the

laws

of

the

State

of

North

Carolina.

For

any claim

that

proceeds to a judicial forum arising out of or related to the Plan, such claim shall be adjudicated in the federal courts for the Western District of North Carolina or, in the event there is no federal jurisdiction, in the courts of the State of North Carolina located in Mecklenburg County.”

3.

Except as expressly or by necessary implication amended hereby, the Plan shall

continue in full force and effect.
 [signature

page

to
follow]
2
IN WITNESS WHEREOF
,
the
Company, on behalf of all
its affiliated companies that participate

in

the

Plan
,

h
as

caused

this

Instrument

to

be

duly

executed

on

the 17th
day of
December
,
2024.
BANK

OF

AMERICA

CORPORATION

By:

/s/ Christopher J. Fabro

Christopher J. Fabro

Global

Compensation,

Benefits,

and Corporate

Travel

Executive

3